

ONTARIO

SUPERIOR COURT OF JUSTICE

B E T W E E N:

GIUSEPPE FRAGOMENI, ESTERINA
FRAGOMENI, MICHAEL
FRAGOMENI, FRANK FRAGOMENI,
STEFANO FRAGOMENI, ROBERT
FRAGOMENI, and LEONARDO
FRAGOMENI

Plaintiffs

- and -

ONTARIO CORPORATION 1080486
OPERATING WARD FUNERAL
HOME LIMITED, FORMERLY
KNOWN AS WARD-DAMIANI
FUNERAL HOME (VAUGHAN)
LIMITED AND VAUGHAN FUNERAL
HOME INC., DANTE BELLINI c.o.b.
BELGRASS MAINTENANCE

Defendants

) R. Donald Rollo, for the Plaintiffs

) Fiona M. Brown, for the Defendant,
) Dante Bellini c.o.b. as Belgrass
) Maintenance

) D. Wright, for the Defendant, Ward
) Funeral Home

) **HEARD:** March 17, 20, 21, 22, 23
) and 24, 2006

REASONS FOR JUDGMENT

Baltman, J.

[1] This case is about a man who fell in a parking lot and ended up with dementia.

[2] On February 19, 2000, Giuseppe Fragomeni and his wife, Esterina, were leaving a funeral home when Mr. Fragomeni fell in the parking lot and hit his head. He sustained a skull fracture and eventually required surgery to relieve the bleeding inside his head. He also developed cognitive and behavioural problems typical of progressive dementia, which have worsened over the years to the point that he is now significantly handicapped.

[3] The plaintiffs, who consist of Mr. and Mrs. Fragomeni and their five sons, argue that Ward Funeral Home (Ward) and/or the snow removal company it hired (Belgrass) failed to maintain the parking lot in safe condition. They further submit that the fall triggered virtually all of Mr. Fragomeni's subsequent physical, cognitive and behavioural problems, for which they should be compensated.

[4] The defendants state that they took all reasonable steps to safely maintain the parking lot and the fall resulted from Mr. Fragomeni's negligence. Each defendant has cross-claimed against the other. They further argue the plaintiffs' damages are limited to the effects of the immediate fall and skull surgery, and do not include any problems related to his dementia.

[5] The issues, therefore, are:

1. Are the defendants liable in negligence?
2. Was Mr. Fragomeni contributorily negligent?
3. Did the accident cause or contribute to Mr. Fragomeni's dementia?
4. What if any damages are payable to the plaintiffs?

Factual Background

[6] The following are the largely undisputed facts:

The Fragomeni Family

[7] Mr. Fragomeni is 75 years old and Mrs. Fragomeni is 61. They were born in Italy and married there before emigrating to Canada in 1968. They have been married for 38 years and have five sons: Michael, 36; Frank, 35; Stefano, 34; Robert, 32; and Leonardo, 30, all of whom are married and have collectively produced fourteen grandchildren.

[8] Mr. Fragomeni owned a bakery business in the Toronto and Brampton area and retired in 1994. He is described¹ as a traditional, hard-working man

¹ Mr. Fragomeni was hospitalized shortly before the trial began, and therefore was not available to testify.

who was strict but generous with his family and who enjoyed gardening and social activities.

[9] Before this accident Mr. Fragomeni had been diagnosed with a number of medical conditions, including coronary artery disease, pulmonary infections, high blood pressure, and insulin dependent diabetes. He smoked for 20 years, stopping in 1975. In addition to daily insulin, he required numerous medications, including antihypertensives.

The Location

[10] Ward Funeral Home is a large commercial operation that caters to the Italian community. It consists of a 22,000 square foot building on Highway 7, with room for approximately 100 cars in its parking lot. The home can accommodate up to 5 funerals at one time.

[11] On the day of the accident three funerals were scheduled, one at 9 a.m. and two at 10 a.m. The defendants acknowledged Italian funerals are typically well attended, and therefore that morning they could have expected the entire parking lot to be used and between one and two hundred people coming in and out of the building.

The Weather

[12] Several witnesses recalled there was significant snowfall in the late hours of February 18th and/or early hours of February 19th, and that it was very cold on the morning of February 19th. While there were slight discrepancies about the amount and time of snowfall, and the precise temperature, the meteorological reports confirm approximately 6.4 cm (3 inches) of snowfall between the late hours of February 18th and the early hours of February 19th, and a temperature of approximately -9.5 celsius during the relevant hours of 7:00 to 9:00 a.m. on February 19th. In other words, in the hours immediately preceding this incident, it had snowed and was quite cold.

The Accident

[13] On Feb 19th Mr. and Mrs. Fragomeni attended two funerals at Ward Funeral Home on Hwy 7 near Islington Ave. Mrs. Fragomeni drove to the funeral home. She and Mr. Fragomeni went inside to pay their respects and then headed out toward their car.

[14] In the middle of the parking lot, Mr. Fragomeni slipped and fell backward, hitting hit his head on the ground. Several bystanders came and helped him up and into his car. He appeared dazed and was unresponsive, and Mrs. Fragomeni drove him to Peel Memorial Hospital, where he was diagnosed with a closed head injury and neck strain. An x-ray of his skull was reported to be “normal” but

in fact failed to detect a skull fracture. He was sent home with medication and routine head injury instructions.

Events Post-Accident

[15] Over the next few weeks, Mr. Fragomeni complained of headaches and dizziness. Within a few months he developed right-sided weakness and difficulty with walking. On April 15, 2000, he appeared dazed and was unable to speak or stand up. He was taken to hospital where a CT scan revealed a skull fracture and subdural hematoma (bleeding within the skull). He was also suffering from pneumonia.

[16] Mr. Fragomeni was treated with antibiotics and there was some improvement in his neurological status. He ultimately went on to require a burr hole procedure to drain the hematoma. The surgery was successful in the sense that the hematoma resolved. However, within the coming weeks and months his cognitive function began to decline and the family observed personality changes including agitation, mood swings, and paranoia.

[17] Mr. Fragomeni's various clinicians have diagnosed a progressive dementing illness. An occupational therapy assessment noted impaired insight,

judgment and behaviour, and has recommended attendant care, housekeeping services and other aids.

Issue #1: Are the defendants liable in negligence?

The Legal Framework

[18] The onus is on the plaintiffs to prove on a balance of probabilities that the defendants were in breach of a duty of care. Section 3(1) of the *Occupiers Liability Act* sets out the statutory duty:

3. (1) An occupier of premises owes a duty to take such care as in all the circumstances of the case is reasonable to see that persons entering on the premises, and the property brought on the premises by those persons are reasonably safe while on the premises.

[19] It is undisputed that Ward was the occupier of the property where Mr. Fragomeni fell. The decision of the Ontario Court of Appeal in *Waldick v. Malcolm* (1989), 70 O.R. (2d) 717, aff'd [1991] 83 D.L.R. (4th) 114 (S.C.C.) is the leading case relating to an occupier's duty of care. The Court stated:

All courts have agreed that the section imposes on occupiers an affirmative duty to make their premises reasonably safe to protect others from foreseeable harm...The duty is not absolute and occupiers are not insurers liable for any damages suffered by persons entering their premises. Their responsibility is only to take "such care as in all the circumstances of the case is reasonable."

[20] The court emphasized what constitutes reasonable care will turn on the specific facts of each case. Subsequent cases have expanded upon this principle to address situations of known danger, for example ice and snow conditions in parking lots. Courts have stated defendants need not meet a standard of perfection; however, the owner “must have a system in place to ensure users will be reasonably safe from slipping and falling due to weather conditions. Furthermore, the system must be functioning properly.” (*Gardiner v. Thunder Bay Regional Hospital*, [1999] O.J. No. 833 (Gen. Div.) p. 8; *Przelski v. Ontario Casino Corp.*, [2001] O. J. No. 3012)

Evidence and Analysis

[21] Ward had a statutory duty to ensure that Mr. Fragomeni would be reasonably safe while on its premises. Part of that duty required Ward to ensure a reasonable system of snow and ice removal was in place in February 2000. Ward maintains it discharged that duty through a written contract it had with Belgrass, which required Belgrass to remove snow upon accumulation of 2 inches or more, and to “salt on call,” meaning Belgrass would salt if called upon to do so by Ward. The problem is that whatever the contract said, each party believed the other was deciding if and when salting was needed.

[22] Dante Bellini testified on behalf of Belgrass. He has been the sole owner and operator of Belgrass for 15 years, since its inception. Belgrass provides landscaping and snow removal services, and Ward had been one of its clients since 1997. It is undisputed that in his dealings with Ward, Mr. Bellini communicated almost exclusively with Carl Damiani, the Managing Director of Ward.

[23] In his examination in chief Mr. Bellini claimed he never salted on his own initiative:

Q. Could you explain to us your understanding of the words in your contract, "Salt on call?"

A. Well, salt on call means like **I don't have authority to go ahead and salt on my discretion.** So [Mr. Damiani] said that if there was any - - when he wanted salt he would call me and I would go salt the parking lot.

Q. All right. **So you had to be told when to salt.**

A. **Yeah. Yes.**

Q. Back in February 2000, could you tell us generally, how did those instructions to salt get to you?

A. He would phone me in the morning or any time of the day and he would say, "Can you come and salt the parking lot?"

[emphasis added]

[24] Carl Damiani testified on behalf of Ward, and had a very different view of their arrangement. Mr. Damiani had been employed with the funeral home since it opened in 1995. He was responsible for the overall management and

maintenance of the facility. He said he always conducted an early morning "walk-about" the parking lot to insure everything was "clean and clear" of debris.

[25] If snow plowing or salting was required, Mr. Damiani expected it to be performed by Dante Bellini, the owner and operator of Belgrass. He and Mr. Bellini had a good working relationship and communicated mostly by telephone. During cross-examination Mr. Damiani stated he had never seen the written contract between Ward and Belgrass until the day before he testified. He operated according to his own understanding of their relationship, namely that at all times they each exercised their own discretion as to whether and when salting was required:

Q. If, on your rounds, your inspection you do see ice and snow, is it your practice to phone Bellini at some point and tell him to come over and plow the snow?

A. Absolutely. If - - if there's plowing to be done absolutely. And yes, salting. Salting similarly, yes.

Q. If there's ice, salt.

A. Yes.

Q. Then salt.

A. Absolutely.

Q. And your contract with him was that he wasn't to do this unless you phone him. Isn't that right?

MS. BROWN: The contract is that if he is to salt, he must be called. He's supposed to plow. That's what the contract is for.

MR. ROLLO: Q. Well, with regard to plowing, I take it, you would just expect him to come out as the contract says, whenever there's two inches.

- A. My - - my relationship with Mr. Bellini was over five years and **it was not really based on a contract, to be totally frank. It was based on an understanding that we had** and the understanding was that, you know, obviously if things needed to be plowed, come plow them. **If in his discretion, you know, it's icy and you got to salt, salt. If I think it's icy and needs to be salted, come salt.**
- Q. **Okay. So if he thinks it's icy, he'll come and salt and if you think it's icy you'll give him a call.**
- A. **Yeah.** I mean we - - we had a working relationship. I mean it evolved over time and so that's how it worked.

[emphasis added]

[26] Mr. Damiani's evidence on this point was not seriously challenged by Bellini's counsel. I accept that in Mr. Damiani's mind, at least, whether and when to salt was in the discretion of either defendant. That is consistent with the longstanding and informal relationship he described having with Mr. Bellini over the years.

[27] I find that whatever the contract said, there was no clear procedure in place to determine who was responsible for deciding if and when to salt. This case is distinguishable from *Gardiner*, where the contract provided that sand was to be applied "as determined by the contractor or as demanded", but in fact the contractor routinely sanded after every second snow ploughing. Here, either defendant might or might not have decided on any given day that salting was required. I therefore conclude Ward failed to ensure a reasonable system of snow and ice removal was in place in February 2000.

[28] Even if the system could be said to be adequate, the evidence suggests it was not working on the day of the accident. Mrs. Fragomeni testified that she and Mr. Fragomeni arrived at the funeral home around 8:30 a.m. on February 19th. They were both wearing rubber sole shoes and as they entered the funeral home she observed a lot of snow and several icy passages. It was her impression the lot had not been plowed or salted.

[29] At approximately 8:45 a.m., after paying their respects inside, she and Mr. Fragomeni headed back to the car. When they were approximately 15-20 steps away from their car, Mr. Fragomeni slipped and fell backwards, banging his head on the ground. When she went to help him up she noticed the area around his feet was icy. Several bystanders helped him up and into her car. She testified that on her way out she rolled down her window to advise an employee standing nearby to put down salt.

[30] The defendants maintain that the lot had been cleared of snow and properly salted. They note the invoice from Belgrass for "Salted parking lot" on February 19th. They also rely upon the evidence of Mr. Bellini, Mr. Damiani, and Mr. Vito Roppo, an employee of Ward.

[31] Neither defendant has suggested salting was not required in this case. Given the combination of snow, ice and freezing temperatures it is undisputed

salting was necessary to insure the lot was safe for visitors. Nor is there any suggestion that Belgrass failed to salt the parking lot on February 19th. Its invoice, which was paid in full, confirms it deposited two tons of salt on the lot on February 19th, and there was no evidence to suggest otherwise. The precise question, however, is when on February 19th the salting occurred. Did Belgrass salt as soon as reasonable?

[32] Three defence witnesses gave evidence relevant to this issue:

1. Vito Roppo

[33] Vito Roppo was employed by Ward as an assistant funeral director. By February 2000 he had been employed there for approximately 10 years and was familiar with the parking lot and the general routine around funerals. His job on the day of the accident was to drive the hearse from the funeral home to the church and help out wherever necessary.

[34] On the day of the accident he had backed the hearse up to the doors of the funeral home so that the casket could be loaded. His car was facing in the general direction of the fall. He was about to get out of the hearse when he

realized a man had fallen in the parking lot. He walked over and helped Mr. Fragomeni up and into his car.

[35] He recalled that it was an extremely cold day and the lot was slushy with some ice patches. It appeared the lot had been cleared of snow. Mr. Roppo testified he observed salt in the area where Mr. Fragomeni fell. He stated that the woman accompanying Mr. Fragomeni (now known to be Mrs. Fragomeni) was yelling that there was no salt in the lot. He recalls telling her the lot was indeed salted and that Mr. Fragomeni was not wearing proper shoes for the weather conditions.

[36] The upshot of Mr. Roppo's evidence in chief is that although Mrs. Fragomeni complained there was no salt, he observed salt in the area of the fall and thought Mr. Fragomeni was not wearing adequate footwear. However, during cross-examination it became apparent that Mr. Roppo has very limited memory of the event and made few reliable observations on the day in question. First, he disagreed with where Mrs. Fragomeni said the fall occurred, placing it further up and to the right on the photograph supplied, but then a few minutes later "realized" the fall occurred in a completely different area of the lot from either of those locations. Second, he claimed Mr. Fragomeni fell on a "flat" area of the lot, when it is undisputed by Mr. Bellini and Mr. Damiani that the lot slopes slightly

downward in the area of the fall. Third, he “disagreed” that *any* snow had fallen the night before or the morning of the fall, and insisted there had been freezing rain the night before, all of which is flatly contradicted by the meteorological reports and evidence of Mrs. Fragomeni, Mr. Bellini, and Mr. Damiani. Fourth, he stated Mr. Fragomeni fell backward onto a patch that was wet due to melting ice. However, once Mr. Fragomeni was standing he saw moisture on the side of his coat, not on the back. His explanation was there must have been a puddle there, but moments later said there was no puddle. Still later in his cross-examination he conceded there were patches of ice in the area where Mr. Fragomeni fell.

[37] For those reasons I give little weight to Mr. Roppo's evidence about the condition of the parking lot and his observations of the accident scene.

2. Dante Bellini

[38] In his examination in chief, Mr. Bellini claimed his usual routine was to plow the lot before 7:30 a.m. because Mr. Damiani required it to be clear before any guests might arrive. Mr. Bellini testified it snowed the night before and into the early hours of February 19th. He plowed the lot early that morning. Shortly after 7 a.m. Mr. Damiani called him to put down salt, which he promptly did. He said by the time he left the lot that morning the salt would have been starting to melt the ice.

[39] I give little weight to Mr. Bellini's evidence about his activities and observations that morning. Although the invoice states he salted on the 19th, his evidence that he did so much before the slip and fall occurred is implausible. First, Mr. Bellini kept no log or notes regarding when and where he salted for his clients. He is relying solely on his memory as to what occurred over six years ago. Mr. Bellini testified he had a specific recollection of plowing and salting on February 19th, because upon being served with the statement of claim he spoke to a few of his employees who also did plowing and salting that day, and that prompted his memory of what he had done. However, Mr. Bellini was not served with the statement of claim until July 4, 2003, almost three and a half years after the accident. Until then he had no idea anyone had fallen in the parking lot, and therefore would have had no reason to note the snow and ice conditions that day or what measures he took to alleviate them.

[40] Second, he contradicted himself on many relevant details. At trial he insisted that Mr. Damiani called him "a little after 7 a.m." to come and salt. But on his examination for discovery, he stated Mr. Damiani called him at 7:30 a.m., and could not explain that discrepancy. At trial he stated he told Mr. Damiani at one point (before the accident) that the area where Mr. Fragomeni fell was "a little slopey", and Mr. Damiani replied that he should therefore put a little extra salt there, which he did. However, on his discovery, he said that when alerted to that

sloped area Mr. Damiani said “I’ll just call you when I want salt.” At trial he suggested he might have completed salting by 8:30 a.m., but on his examination for discovery he said he salted sometime between 8:30 a.m. and 9:00 a.m.

[41] Third, his time estimates don’t add up. Assuming, as he said on discovery, Mr. Damiani called him at 7:30 a.m., any salt he laid that morning could not have been melting the ice by the time Mr. and Mrs. Fragomeni arrived at 8:30 a.m. (not to mention family members or guests who arrived even earlier). He acknowledged it normally took him 15-20 minutes to drive to the garden centre to purchase salt, another 10 minutes to load up, another 15 minutes to drive to Ward’s, and a further 15 minutes to distribute the salt throughout the lot. These periods when added together indicate he barely completed salting by 8:30 a.m. On his examination for discovery, he acknowledged at the below freezing temperatures of that morning it would have taken 30 to 40 minutes for the ice to begin to melt, meaning even if he finished salting at some point between 8:30 a.m. and 9:00 a.m. that morning it was too late to help Mr. Fragomeni or any other guests who arrived at or before 8:30 a.m.

3. Carl Damiani

[42] Mr. Damiani’s usual routine was to arrive at Ward’s approximately one hour before the family of the deceased, to insure that everything was in order.

Where, as here, the first funeral was scheduled for 9 a.m., the family would usually arrive at approx 7:30 a.m. and begin to leave Ward's to head for the church at approx. 8:30 a.m. Mr. Damiani, therefore, would have arrived at approximately 6:30 a.m.

[43] Mr. Damiani candidly acknowledged he has no memory of the weather conditions leading up to or around the time of the accident, or the condition of the parking lot when he arrived. Nor does he recall whether he called Mr. Bellini to plow or salt that day. He was inside the chapel when a staff member advised him that someone had fallen in the parking lot. By the time he got outside Mr. Fragomeni had been placed inside the car. He was not informed of any injuries and so there was nothing for him to do. His staff directed his attention to where Mr. Fragomeni fell and he observed salt there.

[44] On the whole I found Mr. Damiani to be a credible witness. He was the only defence witness honest enough to admit he had little memory of what he saw or did six years ago. He gave, as one might expect, a fairly detailed description of his overall job responsibilities but acknowledged he could not recall the precise conditions of the parking lot that day and whether he spoke with Mr. Bellini at any point. In particular, he did not say whether he had observed salt in the area of the accident at any point before Mr. Fragomeni fell.

[45] Considered as a whole, the evidence establishes that Belgrass did salt the parking lot on the morning of February 19th, likely at some point between 8:30 a.m. and 9:00 a.m. The defendants submit that salting must have occurred earlier because several witnesses observed water in the lot, which suggests the salt was there long enough to have melt the ice somewhat.

[46] I accept there may have been some water in the lot by the time Mr. Fragomeni fell. That may only suggest that salt previously laid had some effect or salt laid that morning had begun to have some effect; it does not alter the fact that on the evidence, salt was not laid sufficiently in advance of when guests were expected to arrive to effectively reduce the risk of falling in what were clearly very dangerous conditions. On this day in particular there were numerous factors that made the area of the fall particularly dangerous:

- The combination of snow and below freezing temperatures created a strong likelihood the surface of the parking lot would be icy
- The funeral home was going to be very busy with many people walking through the lot from as early as 7:30 a.m., as three funerals were scheduled for that morning

- The area where Mr. Fragomeni fell slopes slightly downward, and was known as an area of special concern to the defendants

[47] After weighing all the evidence, I find that Ward has failed to establish a reasonable plan for ice removal was in place when this accident happened, or that salting occurred sufficiently in advance of Mr. Fragomeni's arrival on the day of the accident. I therefore conclude Ward breached its duty of care to the plaintiffs under s. 3 (1) of the Act.

[48] Having found that Ward is liable to the plaintiffs for damages arising from the fall, I turn now to consider what liability, if any, Belgrass bears.

[49] I have already found that Mr. Bellini failed to salt early enough to insure the lot was safe for any visitors. Belgrass' position is that it bears no responsibility because Mr. Bellini was not required to attend until called, and Mr. Damiani didn't call him until sometime between 7:00 a.m. and 7:30 a.m. Mr. Damiani, however, stated Mr. Bellini was expected to salt on his own discretion whenever needed, and there is no question that salting was required on the 19th.

[50] I do not accept Mr. Bellini's evidence that he always waited for a call from Mr. Damiani before salting. I have already found Mr. Bellini to be an unreliable witness, and I accept Mr. Damiani's evidence that he and Mr. Bellini had a much

more casual arrangement regarding salting than the written contract suggests. If, as Mr. Bellini insists, he never salted without first receiving a call from Mr. Damiani, I find it peculiar that he never kept a record of such requests.

[51] I find both defendants undertook but failed to insure that the lot was salted in a reasonable and safe manner on February 19, 2000, and as such they are jointly and severally liable under the *Negligence Act*. I assess each defendant 50% responsible for Mr. Fragomeni's loss.

Issue #2: Was Mr. Fragomeni contributorily negligent?

[52] The defendants could not point to any evidence suggesting Mr. Fragomeni was hurrying or not proceeding carefully when he was returning to his car. The only evidence adduced by defendants in support of contributory negligence by Mr. Fragomeni was the testimony of Mr. Roppo that Mr. Fragomeni was wearing "plastic-soled shoes" unsuitable for the weather conditions that day.

[53] I reject this position, for three reasons. First, for reasons set out above, I find Mr. Roppo to be a poor observer of the accident scene. Second, this evidence was not disclosed to the plaintiff in the witness summary produced before trial, and therefore little weight should be given to it now. Third, Mr. Roppo

attempted to illustrate the type of shoes Mr. Fragomeni was wearing by saying they resembled the dress shoes he was wearing in the witness box, but Mr. Roppo's shoes were not shown to me nor was their description established on the record.

[54] I conclude there is no basis upon which to find Mr. Fragomeni contributorily negligent.

Issue #3: Did the accident cause or contribute to Mr. Fragomeni's dementia?

[55] The parties agree that the accident caused Mr. Fragomeni's skull fracture and subsequent subdural hematoma. They disagree on whether the accident caused or contributed to his dementia. The plaintiff's position is that Mr. Fragomeni's trauma triggered his current dementia, which is most likely due to Alzheimer's disease. The defendants maintain that Mr. Fragomeni made a good recovery from the accident and is suffering from an unrelated degenerative condition and associated cerebral vascular disease.

[56] The evidence on this issue came essentially from two experts. The defendants relied on the opinion of Dr. Maureen Shandling, a neurologist. Dr. Shandling states that Mr. Fragomeni sustained a head injury from the initial fall

that caused neurological symptoms over the next few months until he was ultimately diagnosed with the subdural hematoma. However, she believes that once the hematoma was evacuated through the burr hole surgery, he made an excellent recovery and his neurological symptoms resolved. She attributes his subsequent neurological decline to a separate degenerative condition unrelated to the trauma of the accident. In her view, Mr. Fragomeni's advanced age, combined with his pre-existing risk factors caused a degenerative condition, most likely frontotemporal dementia, with associated cerebral vascular disease. In other words, Mr. Fragomeni would probably have developed cognitive impairment and behavioural problems secondary to dementia, irrespective of his injury.

[57] In support of her analysis Dr. Shandling noted that the CT scan of April 2000 revealed "non acute lacunar infarcts" – in other words, small strokes that happened some time in the past, rather than recently. A subsequent scan done in May 2001 shows the subdural collection has resolved, but the "hypodensity [stroke tissue]...is unchanged." The scan also notes "mild diffuse atrophy," which is commonly seen with a degenerative process. Dr. Shandling testified that the strokes seen on the CT scans are typical of diabetes, high cholesterol, high blood pressure and aging, all factors seen in Mr. Fragomeni's case.

[58] Dr. R. van Reekum, a psychiatrist with a special interest in cognitive disorders, gave an expert opinion on behalf of the plaintiffs. Dr. van Reekum believes that Mr. Fragomeni's initial brain injury and/or subdural hematoma caused neurological sequelae that precipitated or contributed to a gradual and progressive dementing illness, most likely Alzheimer's disease. He suggests that in the initial blow to his head Mr. Fragomeni suffered serious neuronal damage (injury to brain cells) that may have triggered any number of pathological processes. He identified in particular "the deposition of a compound called amyloid," an abnormal molecule that is associated with and believed to be one of the causes of Alzheimer's disease.

[59] Dr. van Reekum noted that research demonstrates that men who have brain injuries are 2.5 times more likely to develop Alzheimer's disease in the following years. He emphasized that this research is, in his view, particularly reliable because it is based on a "meta-analysis" – a compilation and analysis of studies that have already been published.

[60] Dr. van Reekum believes the initial injury produced delayed but related sequelae, and thereby set off "a whole cascade of pathology," which include many of the cognitive and behavioural changes observed in Mr. Fragomeni. Dr. van Reekum acknowledged that because of his history of diabetes and high

cholesterol, Mr. Fragomeni was at risk for cerebrovascular disease (i.e. strokes) even without this accident. However, he emphasized there was no evidence he suffered any strokes before the accident and stated the only evidence of stroke even following the accident arose from a CT scan done in April, 2000, while Mr. Fragomeni was suffering with the subdural hematoma. In Dr. van Reekum's opinion, the stroke seen on that CT scan was probably caused by the pressure effects of the subdural hematoma. In other words, if Mr. Fragomeni suffered a stroke following the accident, it too resulted from the initial brain injury.

[61] For the following reasons I find Dr. Shandling's opinion more persuasive on the issue of causation. First, Dr. Shandling, as a neurologist, is better qualified with respect to the issue at hand, namely, the causal link between a brain injury and subsequent dementia. I accept that Dr. van Reekum has served as a neuropsychiatric consultant for many years and has extensive experience in the treatment of brain injuries and dementia through his work at Baycrest Centre and the Toronto Rehabilitation Institute. However, by his own evidence, he typically gets involved with these patients months or years after the initial insult, and is focussed on restoring function and improving their mental health. By contrast, as a neurologist Dr. Shandling is directly involved in diagnosing structural changes and diseases of the brain and assessing the origins of any neurologic deficits.

Where, as here, the question concerns the cause of a particular malady, her training and experience is more relevant.

[62] Second, the clinical records indicate that Mr. Fragomeni made an excellent recovery after evacuation of the subdural hematoma. He was discharged from the hospital on June 16th, 2000, and attended a follow-up assessment with his neurosurgeon, Dr. M. S. Izukawa, on July 25, 2000, with Mrs. Fragomeni in attendance. Dr. Izukawa noted

“He has made a good neurological recovery. Speech and language have been normal. His gait unsteadiness seems to have resolved. He no longer veers to the right. He goes for one mile walks, twice daily.”

[63] More importantly, by his return visit to Dr. Izukawa on September 5, 2000, Mr. Fragomeni reported feeling “very well and his neurological symptoms have resolved completely.” A subsequent CT scan of his head showed complete resolution of the subdural hematoma, and Dr. Izukawa cleared Mr. Fragomeni to resume driving and travelling.

[64] Similarly, on July 31, 2000, Mr. Fragomeni advised Dr. Hill, his cardiologist, that he felt “almost back to normal.” He denied any cognitive impairment. In fact it was not until February 9, 2001, that any symptoms of dementia begin to be reflected in the medical record. Mr. Fragomeni then

reported concerns about memory and concentration to his family physician, Dr. Rogers, who referred him to Dr. Chandrakumar, a Geriatrician. Dr. Chandrakumar's report of March 26, 2001 notes that Mrs. Fragomeni, who accompanied Mr. Fragomeni to the appointment, advised of

"...a gradual decline in her husband[s] short-term memory since he returned home, with change in his personality. He is very repetitive and not able to perform his daily activities due to his forgetfulness. Furthermore, he has mood swings, agitation, mood swings [sic] and paranoia, which has affected his care at home."

[65] Near the conclusion of his report Dr. Chandrakumar stated that Mr. Fragomeni's cognitive deficits were likely due to dementia "probably brought on by chronic subdural hematoma." However, he added that Mr. Fragomeni may also have an element of vascular dementia, as he had multiple risk factors for vascular disease and his CT scan in April revealed a lacunar infarct (stroke).

[66] The plaintiffs note that in subsequent reports Dr. Chandrakumar again related Mr. Fragomeni's dementia to his subdural hematoma. In his most recent report, dated February 7, 2006, he stated that Mr. Fragomeni's dementing illness "may have been precipitated by the head injury as his symptoms came on after he developed subdural hematoma a few months after the fall."

[67] The plaintiffs rely on those statements from Dr. Chandrakumar to link Mr. Fragomeni's dementia to the accident. The difficulty is that in making that link Dr. Chandrakumar obviously accepted without question Mrs. Fragomeni's advice

that she had observed those symptoms since Mr. Fragomeni's surgery. I do not accept Mrs. Fragomeni made those observations as early as she claims, given that she reported no neurological problems to any doctor until March of 2001.

[68] I also find it significant that when Mrs. Fragomeni visited Dr. Rogers on December 13, 2000, complaining of dizzy spells, she "denie[d] any reason to be anxious or depressed," and made no mention of Mr. Fragomeni's alleged problems. Mrs. Fragomeni testified that by September of 2000, in addition to many other cognitive deficits, Mr. Fragomeni was acting violent toward her. She also said Dr. Rogers had been the family physician for both her and Mr. Fragomeni for many years, and she felt completely comfortable and open with him. If she was truly concerned about Mr. Fragomeni's behaviour since his surgery in June, it is odd she said nothing to Dr. Rogers about all that she had been enduring in the preceding months.

[69] The plaintiffs argue other evidence demonstrates neurological problems arose very soon after the surgery. They point to the report of Dr. B. Temple, a neurologist who assessed Mr. Fragomeni on August 17, 2000 at the request of Dr. Izukawa. Dr. Temple noted complaints of right-sided weakness and difficulty with gait. However, Mr. Fragomeni's main complaint concerned numbness and tingling in his right hand, which Dr. Temple diagnosed as possible carpal tunnel

syndrome, “likely...secondary to his diabetes.” In any case, by the time he saw Dr. Izukawa on September 5, 2000, Mr. Fragomeni reported he no longer found his right hand disabling.

[70] Several of Mr. Fragomeni’s sons testified they observed a variety of neurological and behavioural problems in the months following the surgery. They noted he walked with a limp, his speech was slurred, and he had difficulty gripping objects with his right (dominant) hand. They also reported he was irritable, forgetful, and prone to outbursts. He avoided large groups and showed little interest in his children or grandchildren.

[71] It is perhaps understandable Mr. Fragomeni’s family is now convinced the accident is responsible for his current condition. The fall and subsequent surgery was a traumatic interlude in their lives, and they are now faced with a husband and father who is altered in many ways from the man they knew six years ago. It is tempting to link the accident with Mr. Fragomeni’s current condition and assume they must be related. But the records that were generated at the time are a much more reliable history of Mr. Fragomeni’s symptoms, and they indicate Mr. Fragomeni was essentially recovered by September 2000.

[72] Moreover, the childrens’ account is belied by Mr. Fragomeni’s behaviour and presentation. After his release from hospital Mr. Fragomeni was cleared to

resume driving, and Mrs. Fragomeni conceded in cross-examination that he may have driven on occasion up until the spring of 2001. In the summer of 2000 he was able to walk a few miles a day. He and Mrs. Fragomeni travelled to Italy for six weeks in October and November of 2000, without any significant problems. Most importantly, if his sons then noticed such obvious and disturbing symptoms as they now claim, it is troubling that none of them insured he saw a doctor during the five-month interval between September 2000, when Dr. Izukawa pronounced him completely recovered, and his attendance with Dr. Rogers in February 2001.

[73] Third, there is little, if any, reliable scientific evidence that links brain trauma or subdural hematoma to Alzheimer's disease (the diagnoses preferred by Dr. van Reekum) or frontotemporal dementia (the diagnoses preferred by Drs. Shandling and Chandrakumar). Dr. van Reekum agreed there is no established connection between brain injury and frontotemporal dementia but suggested scientific literature supports a causal link between brain injury and Alzheimer's disease. He relied upon a number of articles, several of which were not peer-reviewed and therefore have not withstood rigorous scrutiny.

[74] Of the few that were peer-reviewed the most recent was co-authored by Dr. van Reekum and is entitled "Traumatic Brain Injury and Dementia," and was

published in *The Canadian Alzheimer Disease Review*. It suggests that traumatic brain injury is associated with a variety of cognitive deficits and may lead to the development of dementia, in particular Alzheimer's disease. However, Dr. Shandling was critical of this research, for two reasons. First, it contains a "recall bias" inherent in retrospective studies, whereby patients are more likely to "recall" a brain injury simply by being asked about it, regardless of whether one actually occurred. Second, she noted many other studies have concluded any link is merely coincidental, and reflects the very high incidence of Alzheimer's disease among seniors (striking 5% of people over 65, 20% of those over 75, and 50% of those over 80.)

[75] The plaintiffs submit that in her cross-examination, Dr. Shandling conceded that various symptoms displayed by Mr. Fragomeni after the accident – particularly confusion, memory loss, word-finding problems, and personality changes – could, if they continued uninterrupted by the surgery, be contributing factors to his current condition. The plaintiffs argue this proves the accident was a contributing cause, even if not the sole cause of Mr. Fragomeni's dementia, and point to case law stating that causation is established where the defendants' negligence "materially contributed" to the resulting injury (*Athey v. Leonati*, [1996] 3 S.C.R. 458 (S.C.C.))

[76] I find that case law does not apply here. Although Dr. Shandling made the concession they report, it was premised on Mr. Fragomeni's symptoms being "uninterrupted" by the surgery. I have already found that Mr. Fragomeni made an excellent recovery following the evacuation of his subdural hematoma, and most, if not all of those symptoms resolved for many months following the surgery. Moreover, Dr. Shandling was not prepared to say those symptoms were (either alone or in combination) a likely or probable contributing feature, or one of many causes. While I accept none of them need be the sole cause, Dr. Shandling allowed no more than those factors "might" have contributed to Mr. Fragomeni's dementia. This does not reach the level of proof required.

[77] For all those reasons, I conclude that the accident did not cause or contribute to Mr. Fragomeni's dementia, and that any accident-related symptoms ceased to exist by early September, 2000 when Dr. Izukawa pronounced Mr. Fragomeni completely recovered.

Issue #4: What damages are payable to the plaintiffs?

[78] I received very limited submissions from all parties on this issue. The defendants simply identified amounts without any rationale or case law to support them. On the assumption the accident did not cause Mr. Fragomeni's dementia, they proposed \$75,000 in general damages for Mr. Fragomeni, and \$10,000 for

Mrs. Fragomeni's FLA claim. As for the sons' FLA claims, Ward proposed each should be valued at \$2,000, but Belgrass suggested no amount.

[79] The plaintiffs' submissions were perplexing. Assuming the fall did not cause Mr. Fragomeni's dementia, they nonetheless seek "ongoing damages" related to Mr. Fragomeni's brain injury, including housekeeping and transportation, and respite care for Mrs. Fragomeni. They proposed the following damages calculation:

Housekeeping – 1.8 hrs a day x 365 x 16 x \$20.00	=	\$210,240.00
General damages for Giuseppe Fragomeni		\$125,000.00
General damages, FLA		
Esterina Fragomeni		\$ 50,000.00
Rob, Mike, Frank, Steve, \$20,000 each		\$ 80,000.00
Len		\$ 10,000.00
Physio		\$ 1,320.00
O.T. assessment		\$ 4,840.00
Psychological assistance for Mrs. Fragomeni		\$ 2,000.00
Respit Day Program		\$ 2,304.00
Transportation needs		\$ 36,000.00
Special damages		\$ 3,340.79
OHIP subrogated interest		<u>\$ 10,473.60</u>
		\$535,518.39

[80] Given my finding that Mr. Fragomeni's fall-related symptoms resolved by early September 2000, and that any subsequent problems arose from his degenerative condition, there is no basis for any expenses beyond September 2000.

[81] I would assess general damages for Mr. Fragomeni at \$90,000. The skull fracture produced frequent headaches and right-sided weakness for two months until a CT scan revealed the subdural hematoma. After another few months, when conservative treatment did not alleviate his symptoms, he underwent surgical evacuation of the hematoma by means of a burr hole drilled into his skull to effect drainage. This necessitated nine days in hospital and highly invasive surgery, followed by a substantial period of recuperation. Although he recovered well, he is left with a significant and visible scar.

[82] The FLA claims of Mrs. Fragomeni and the couple's five sons are also confined to the period between the fall and September 2000. Undoubtedly the whole family was adversely affected by his condition and his hospitalization in June, but there was no evidence that it caused a substantial loss of care, guidance and companionship. I would assess Mrs. Fragomeni's FLA claim at \$10,000 and each of the sons at \$2,000.

[83] In sum, I award the following:

General Damages for Giuseppe Fragomeni:	\$90,000.00
FLA Damages for Esterina Fragomeni:	\$10,000.00
FLA Damages for Rob, Mike, Frank, Steve and Len (\$2,000 each)	\$10,000.00

Trillium Health Centre, telephone service during hospital stay – pre-surgery	\$ 11.25
Trillium Health Centre, telephone service during hospital stay – surgery	\$ 18.00
Ambulance invoice	\$ 45.00
Dr. Daniela Rossi, Dentist	\$ 2,047.00
Quality Cleaners, Drycleaning	\$ 12.30
City of Brampton, parking	\$ 5.00
Hy & Zel's prescription for Mr. Fragomeni	\$ 11.24
Travel	\$ 102.00
Parking	<u>\$ 65.00</u>
Total	\$112,316.79

Conclusion

[84] In conclusion, I find the following:

1. The defendants are jointly and severally liable in negligence to the plaintiffs. Each defendant is 50% responsible for Mr. Fragomeni's damages.
2. Mr. Fragomeni was not contributorily negligent.
3. The accident did not cause or contribute to Mr. Fragomeni's dementia.
4. The plaintiffs are entitled to the damages set out in paragraph 83 above.

[85] The plaintiffs shall have their costs, subject to any engagement of Rule 49. If the parties cannot resolve costs they may make written submissions, not to exceed 5 pages, double-spaced (exclusive of supporting materials). The plaintiffs shall submit by May 9th, and the defendants by May 19th. If a reply is necessary, the plaintiffs shall submit one by May 26th.

Baltman J.

Released: April 12, 2006

COURT FILE NO.: 03-BN-6557
DATE: 20060412

ONTARIO

SUPERIOR COURT OF JUSTICE

B E T W E E N:

GIUSEPPE FRAGOMENI, ESTERINA
FRAGOMENI, MICHAEL FRAGOMENI,
FRANK FRAGOMENI, STEFANO
FRAGOMENI, ROBERT FRAGOMENI,
and LEONARDO FRAGOMENI

- and -

ONTARIO CORPORATION 1080486
OPERATING WARD FUNERAL HOME
LIMITED, FORMERLY KNOWN AS
WARD-DAMIANI FUNERAL HOME
(VAUGHAN) LIMITED AND VAUGHAN
FUNERAL HOME INC., DANTE BELLINI
c.o.b. BELGRASS MAINTENANCE

REASONS FOR JUDGMENT

Baltman J.

Released: April 12, 2006